

Seedling Growing Service Contract

Parties	Josephine County Forestry Department ("Customer")	Weyerhaeuser NR Company a Washington Corporation ("WNR")
Addresses	Josephine County Forestry Department 500 N.W. 6th Street, Dept. 8 Grants Pass OR 97526 US	P O Box 674 Aurora, OR 97002
Term	Effective Date: September 1, 2026	End June 30, 2029
		WNR Contract # 2027A-114
Sales Order Numbers: 20970, 20971		

Customer desires to engage WNR to grow certain tree seedlings described on the attached Sales Order Acknowledgment(s), and WNR is willing to provide such services, on the terms and conditions of this Seedling Growing Services Contract, its Exhibits, and the attached Sales Order Acknowledgement(s) (collectively, "Contract")

1. Sales Order Acknowledgement; Contract acceptance.

Customer agrees to and accepts the terms of the attached Sales Order Acknowledgment(s) including the seed and seedling prices and order quantities. This contract must be electronically signed by Customer and returned to WNR within thirty days of receipt, along with 50% down payment of the full purchase price for this Contract to be in force and the orders to be considered valid. Except as set forth in this Contract, no other terms and conditions apply. This Contract may be amended by written agreement of both parties and/or the issuance of revised or additional Sales Order Acknowledgement(s).

2. Seed for Growing Seedlings:

Seed for growing seedlings will be provided by Customer, or Customer may elect to purchase seed from WNR at the prices set forth on Exhibit 1. If Customer provides seed, the following provisions apply:

- a. Customer must deliver the seed stats such as germination, purity and seeds per pound to WNR no later than September 15th. Third party lab test results are preferred. Seed must be delivered to WNR no later than October 31st. Fraser and Canaan seed needs to be delivered by Oct 1st if possible.
- b. If Customer provides seed without germination information, WNR will determine whether a germination test can be completed in a timely manner. If WNR determines there is sufficient time, WNR will conduct the test. If WNR determines there is insufficient time, WNR will reasonably determine the amount of seed to be used for sowing based on the best available information and a seed sample will be taken and set aside for later testing if WNR determines that doing so is warranted. Customer is responsible for all Seed Service Charges set out in Exhibit 1.
- c. If WNR determines that the amount of seed delivered is not sufficient to produce the ordered quantities of seedlings, WNR will notify Customer and the parties then will either reduce the order amount or arrange for additional seed if time allows.
- d. If WNR determines that seed provided by Customer does not meet the seed lot standards required by its nurseries, WNR will notify Customer of any additional seed lot cleaning services needed to bring the seed lot up to minimum standards. Customer shall either pay for such additional seed cleaning services at the prices set forth on Exhibit 1 or, if time allows, provide an alternative seed lot. This does not include cone processing.
- e. If Customer-provided seed does not produce the contracted volume of seedlings, Customer shall remain responsible to pay for the full requested order for that seed lot at the Contract price.
- f. If Customer provided seed does not test >40% germ by WNR's methods, WNR may choose to not accept the seed and cancel the sow order.

3. Services to be Provided by WNR. WNR will:

- a. Cultivate, culture, and provide commercial tree seedlings of the types and estimated quantities described in the Sales Order Acknowledgment(s).
- b. Maintain Customer's seed and seedlings separate from all other seed and seedlings at its nursery.
- c. Notify Customer of the estimated number of seedlings expected to be available for shipment, and of any unexpected changes in those estimates.
- d. WNR will use its commercially reasonable efforts to have the seedlings ready for Customer pickup on the dates and times requested by Customer as may be agreed to by the Parties ("Pick-up Date"), subject to Section 3.h, below. Customer's storage facility preference will be taken into consideration but may need to be changed based on space and trucking. Customer may only request storage at a nursery if those seedlings are being grown at that facility.
- e. Reserves the right to charge for seedling storage at the rates listed in Exhibit 1 if seedling stock is left more than 10 calendar days after the Pick-up Date. WNR may agree to store seedlings up to May 1, or later with approval, for spring shipments if WNR determines that suitable space is available, at the rate listed in Exhibit 1.
- f. Arrange for and fund agricultural inspections needed for shipment. WNR will bill Customer for any inspection fees at the prices listed in Exhibit 1.
- g. Load the pallets and/or racks of seedlings on trucks provided by Customer at the Pick-up Location. Loose loads on vehicles larger than standard passenger pickup trucks will be assessed the hand loading fee listed in Exhibit 1.
- h. Use reasonable efforts to grow customer's seedlings at the WNR nursery location requested by Customer if WNR determines that doing is feasible. WNR will provide trucking to Pick-up Location during the spring lift season of January 1 to April 30. If customer requests trucking outside of those dates to a Pick-up Location, customer will be responsible for payment of shipping.

4. Customer Obligations

- a. If Customer reduces or cancels an order prior to seed stratification, the down payment toward the purchase price will be refunded, less any costs of seed or other services incurred by WNR.
- b. If Customer reduces or cancels an order after seed stratification, the down payment toward the purchase price becomes non-refundable and WNR will invoice Customer for costs associated with volumes that WNR is unable to resell, using commercially reasonable efforts, within thirty days of cancellation.
- c. Customer must provide WNR a written "lift request" at least 3 weeks in advance of the Pick-up Date. All seedlings will be lifted by April 15 for spring shipments unless WNR determines that weather conditions dictate a different lift date.
- d. If WNR does not receive a lift request by February 1 or communication from Customer regarding stored stock by May 1, WNR has the unilateral right to dispose of the seedlings as it sees fit and invoice Customer for the disposal costs.
- e. Customer will accept the seedlings FOB Pick-up Location during normal working hours or at other times acceptable to WNR.
- f. Customer will inspect the seedlings at or immediately after pick-up and promptly notify WNR of any damage to or quality problems with the seedlings. Any claims must be filed in writing by July 1 of the same year for all spring shipments or by July 1 of the following year for fall shipments. The validity and resolution of all claims shall be determined by WNR in its sole discretion.
- g. Customer will return any WNR racks and/or pallets as soon as possible. Any racks and/pallets that are not returned by June 30 for spring shipments or November 1 for fall shipments will be subject to a charge as listed in Exhibit 1.

5. Estimated quantity, excess and cull seedlings.

The order quantities listed on the Sales Order Acknowledgment are production targets. Customer is obligated to pay for only the quantities actually produced, up to the order amount plus 10%. In the event of overrun (>10% of order volume), Customer has the option to purchase the excess seedlings at the contract price. If Customer elects not to purchase the excess seedlings, they become the property of WNR. Any seedlings not meeting contract specifications per the Sales Order Acknowledgment will be considered culls, and Customer has an option to purchase them at a negotiated price "AS IS, WITH ALL FAULTS" without any warranty or liability by WNR.

6. Payment Terms

All payments are to be made by the Customer listed on Sales Order Acknowledgement. At the Customer's discretion, payment may be made by check, Automated Clearing House, debit card, or credit card. For any balance that the Customer elects to pay via credit card, a service fee in the amount charged by Seller's bank will be added to such balance.

a. WNR shall invoice Customer for the remaining portion of the purchase price plus any additional services provided to or requested by Customer, as listed in Exhibit 1. WNR requires payment in full or established credit (as described in section 6.b) as determined by WNR before releasing seedlings to Customer.

b. If credit is extended, payment terms will be net 30 after the date of invoice. Customer must complete a credit application and provide financial information satisfactory to WNR to establish credit. Late payment charges of 1.75% per month, or the maximum amount allowed by law if less, will accrue after the due date. In the event that Customer fails to make a payment when due, the entire balance will be accelerated and become immediately due and payable.

7. Time is of the Essence; Continued cooperation.

Seed and seedlings are living, fast-growing organisms that can be affected by weather, environment and other variable factors. Customer acknowledges that time is of the essence in its performance under this Contract. The parties agree to cooperate in good faith to respond to factors that might affect WNR's ability to meet the ordered quantities. Without timely or sufficient instructions or information from Customer, WNR will use its sole discretion in circumstances requiring adjustment of normal practices.

8. Limited Warranties, Excused Delay or Failure to perform.

WNR warrants that it will use reasonable care to conduct its nursery and seed operations in accordance with practices and standards generally accepted in the industry, in a manner comparable to those used by WNR to produce similar seed and seedlings for its own account, and that it will ship seedlings that are true to name and appear healthy at the time of shipment. However, WNR does not guarantee that all seedlings shipped will be free of defects or diseases, or be fit for any particular use or purpose. Success of the nursery operations could be adversely affected by and WNR will not be liable for failure or delay in performance of its obligations under this Contract due to, adverse weather, pests and diseases, interruptions of electric power or water service, labor disputes, shortages of labor or materials, failures or delays in transportation, changes in government regulations or regulatory policies, fire, flood, earthquake or other natural disaster, pandemic, or any other event or condition beyond WNR's control. WNR intends to use reasonable care to minimize and, if practical, mitigate the potential adverse effects of such factors on the quantities and qualities of seedlings delivered.

However, WNR cannot guarantee that these efforts will be successful and it will not be liable for any delay or failure to perform its obligations that may result from such causes and will not be liable for any reduced quantity of seedlings produced below the production targets. Except as set forth in this Section, WNR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, WITH RESPECT TO THE SEEDLINGS, AND THE IMPLIED WARRANTY OF FITNESS OF A PARTICULAR PURPOSE IS DISCLAIMED. NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY FOR CONSEQUENTIAL, INDIRECT, INCIDENTAL OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, WHETHER ARISING BY BREACH OF CONTRACT, TORT, WARRANTY, OR OTHERWISE, IN CONNECTION WITH THIS AGREEMENT OR THE SEEDLINGS.

9. Claims, Dispute Resolution.

Any claims that WNR has breached this agreement must be made in writing within 30 days after the alleged breaching event occurred or first became known to Customer, but in no event later than July 1 of the same year for all spring shipments or by July 1 of the following year for fall shipments. The validity and resolution of all claims shall be determined by WNR in its sole discretion. If WNR concurs that it was at fault, it may elect to either provide replacement stock or refund a portion of the purchase price. If WNR does not concur that it was at fault, it will provide a written explanation and deny the claim. The facts stated in that explanation will be considered complete and binding unless, within 30 days, Customer provides written objections specifying different or additional facts and the basis for them. If the parties continue to disagree, they will negotiate a joint statement of the facts that are agreed on, and the additional facts asserted by each of them but contested by the other. As soon as practicable after that, officers or officials of each party who have settlement authority will meet and make good faith efforts to reach agreement on a fair and appropriate solution to the dispute. Regardless, Customer agrees and understands that WNR's aggregate liability for any and all claims, losses, costs, damages of any nature whatsoever shall not exceed the purchase price of the seedlings.

10. FOB

Freight on Board (FOB) Terms will be FOB Pick-up Location and will be described as "FOB Loading Dock" unless stated otherwise. Title and risk of loss pass to Customer upon pick-up of the seedlings at the Pick-up Location.

11. Notices

Written notices may be delivered personally, or by FAX, email or U.S. mail, to the designated contact persons or their designated replacements. Oral notices are acceptable if confirmed by written notice within 5 business days.

12. No Assignment

Customers may not assign any of its rights or obligations under this Contract without the prior written consent of WNR. All prices set forth on Exhibit 1 are Customer-specific and expressly non-transferable. This Agreement shall be binding upon and shall inure to the benefit of the parties and their respective successors and permitted assigns.

13. Signatures

This Agreement may be executed in counterparts, including by electronic signature or electronic delivery of a manually signed signature page), each of which is deemed an original, but all of which together are deemed to be one and the same agreement.

Josephine County Forestry Department ("Customer")	Weyerhaeuser NR Company ("WNR")
By:	By:
Title:	Title: Director Silviculture
Date:	Date:

WNR Contract # 2027A-114
Sales Order # 20970, 20971

Exhibit 1**A. Service Charges:**

Service Type	Charge	Unit
Cooler Storage, pro-rated daily*	\$25.00	Per thousand seedlings
Freezer Storage, pro-rated daily*	\$25.00	Per thousand seedlings
Loose Loading Fee Estimate**	\$1.00	Per package handled (bag/box))
Pick up charge (<24 hr notice)	\$1.00	Per package handled (bag/box))
Racks & Pallets	\$125.00	Per rack/pallet combination
Restock fee	\$0.50	Per package handled (bag/box))

*Standard daily rates may be negotiated in advance for customers anticipating longer term storage needs.

** Variable fee assessed at time of shipping for loose loads in vehicles larger than a standard pick-up.

B. Seed Service Charges:

Service Type	Charge
Seed - De-Winging and Cleaning	\$ 150.00 per Pound of Cleaned Seed
Seed - Germination Test	\$ 130.00 per Seed Lot
Seed - Testing: Seeds/#	\$ 35.00 per Seed Lot
Seed- Testing: Purity	\$ 35.00 per Seed Lot
Seedling - Phytosanitary Inspection/Cert	\$100 first Lot, \$50 each Additional Lot

C. Other Services:

Service Type	Charge
Small Lot (< 5,000 plug or < 10,000)	\$ 250.00 per Lot
Stock Type Order Change *Not always	\$ 500.00
Seedling - Double Sort (small plugs xmas]	\$5.00/thousand
Seedling - Phytosanitary Inspection/Cert	\$100 first Lot, \$50 each Additional Lot
Seedling Shipping (outside of OR/WA)	TBD at time of shipping

D. Seed Pricing

2027 Seed Prices (2027 sow) <i>Prices subject to change</i>	
Species	Price/#
Balsam Fir	\$310.00
Bracted Balsam	\$490.00
Canaan Fir	\$650.00
Colorado Blue Spruce	\$350.00
Corkbark Fir	\$275.00
Deodara Cedar	\$80.00
Douglas Fir	Varies \$300 - \$3,300
Eastern White Pine	\$400.00
Frasier Fir	
FF Rich	\$310.00
FF Mt Rogers	\$340.00
FF Roan Mtn	\$340.00
Grand Fir	\$310.00
GFIR Idaho	\$275.00
Incense Cedar	\$900.00
Korean Fir	\$310.00
Larch	\$910.00
Noble Fir	\$360.00
Nordmann Fir	\$250.00
Norway Spruce	\$155.00
Ponderosa Pine	\$370.00
Scots Pine	\$425.00
Serbian Spruce	\$575.00
Sitka Spruce	\$300.00
SI03WR-00	\$1,675.00
Turkish Fir	\$235.00
Western Hemlock	\$450.00
SI02OCL	\$1,250.00
Western Red Cedar	Varies \$320 - \$4,500
White Fir	
Kibab, San Juan, Santa Fe	\$320.00
Cibola	\$475.00
White Spruce	\$425.00

Showing only species based on seed usage and seed sales


Weyerhaeuser
Weyerhaeuser NR Company
**** NEW ONLINE PAYMENT PORTAL! ****
Sales Order Acknowledgement
DEPOSIT INVOICE 20970-A
Contract # 2027A-114
Exp. Date: 30-Jun-29

Customer #: 2016082
Sales Rep: Anya Kuenzi
Sales Phone #: (541) 327-1566
Date Modified:
Resale #:

Sales Order #: 20970
Sales Order Date: September 8, 2026
Purchase Order #:
Payment Terms: Net 30 Days
Ship Via: Customer Pickup

Sold To:

Josephine County Forestry Department
 500 N.W. 6th Street, Dept. 8
 Grants Pass OR 97526
 US

Contact: Brian Bradac
Phone: (541) 474-5478

Ship To:

Pan Am Tree Freezer (Keizer, OR)
 6826 55th Ave NE
 Salem OR 97305
 US

Phone: (503) 390-5612

Comment:

Line #	WH	Item /Description Lot	Scheduled Date	Quantity Ordered	Unit	Price Per Unit	Extended Price
1	JEFF	TC01-P.77-511.GP1 DFIR.PLUG.77.(S10).511.GP1 J27-828JOSECO Minimum Height = 7" Caliper = 3mm	December 1, 2027	115,000	TREE	\$0.6500	\$74,750.00
2	JEFF	TC01-P.77-512.CJ1 DFIR.PLUG.77.(S10).512.CJ1 J27-829JOSECO Minimum Height = 7" Caliper = 3mm	December 1, 2027	25,000	TREE	\$0.6500	\$16,250.00

Outplant season: 27-28

Please call 10 days in advance to schedule pickup.

Pickup facility: Pan Am Tree Freezer (Keizer, OR) (503)3905612

Order Totals

140,000 EA \$91,000.00
 Sales Tax @ 0.00 % \$0.00
Total \$91,000.00

Remit To:

Weyerhaeuser NR Company
 PO Box 674
 Aurora, OR 97002

**Payment Due
Amount**
**Payment Received
Amount Date**
1st Year Deposit @ 50 %
\$45,500.00
\$0.00
\$0.00
\$0.00
\$0.00

** Payments can be made ONLINE via credit, debit or ACH using our new payment portal.**

 Link: <https://www.e-billexpress.com/ebpp/WYSeedlings/Login/Index>

Check payments must have the Customer Name listed on the Sales Order Acknowledgement.


Weyerhaeuser
Weyerhaeuser NR Company
**** NEW ONLINE PAYMENT PORTAL! ****
Sales Order Acknowledgement
DEPOSIT INVOICE 20971-A
Contract # 2027A-114
Exp. Date: 30-Jun-29

Customer #: 2016082
Sales Rep: Anya Kuenzi
Sales Phone #: (541) 327-1566
Date Modified:
Resale #:

Sales Order #: 20971
Sales Order Date: September 8, 2026
Purchase Order #:
Payment Terms: Net 30 Days
Ship Via: Customer Pickup

Sold To:

Josephine County Forestry Department
 500 N.W. 6th Street, Dept. 8
 Grants Pass OR 97526
 US

Contact: Brian Bradac
Phone: (541) 474-5478

Ship To:

Pan Am Tree Freezer (Keizer, OR)
 6826 55th Ave NE
 Salem OR 97305
 US

Phone: (503) 390-5612

Comment:

Line #	WH	Item /Description Lot	Scheduled Date	Quantity Ordered	Unit	Price Per Unit	Extended Price
1	AUR	TC01-11.6-CJ2 DFIR.1+1.6...CJ2.512.MID AA2728-612JOSECO Minimum Height = 12" Caliper = 6mm Root Length = 10"	December 1, 2028	48,000	TREE	\$0.6100	\$29,280.00

Outplant season: 28-29

Please call 10 days in advance to schedule pickup.

Pickup facility: Pan Am Tree Freezer (Keizer, OR) (503)3905612

Order Totals

48,000 EA \$29,280.00
 Sales Tax @ 0.00 % \$0.00
Total \$29,280.00

Remit To:

Weyerhaeuser NR Company
 PO Box 674
 Aurora, OR 97002

**Payment Due
Amount**
**Payment Received
Amount Date**
1st Year Deposit @ 50 %
\$14,640.00
\$0.00
\$0.00
\$0.00
\$0.00

** Payments can be made ONLINE via credit, debit or ACH using our new payment portal.**

 Link: <https://www.e-billexpress.com/ebpp/WYSeedlings/Login/Index>

Check payments must have the Customer Name listed on the Sales Order Acknowledgement.



Western Regeneration

Weyerhaeuser NR Company
Aurora Forest Nursery
PO BOX 674
Aurora, OR 97002

07/21/2026

To our valued customer,

Payments can be made ONLINE via ACH, debit or credit card using our payment portal. Customers can also opt to pay via check or direct ACH from their bank.

Payment Portal Link: <https://www.e-billexpress.com/ebpp/WYSeedlings/Login/Index>

Please note: For any balance that the Customer elects to pay via credit card, a service fee in the amount charged by Seller's bank will be added to such balance.

If paying by check, please mail to:

**Weyerhaeuser NR Company
Aurora Forest Nursery
PO BOX 674
Aurora, OR 97002**

When paying via ACH through your own bank, provide your bank with the information below and reference your invoice number to ensure the payment is accurately applied to your account.

Bank name and Address:

Wells Fargo Bank
420 Montgomery St
San Francisco, CA 94104

Account Information:

Account Name: Weyerhaeuser NR Company
Account Number: [REDACTED]
ACH Routing Number: [REDACTED]

Please notify our sales support office of your ACH payment including name, invoice number, amount paid, and date of payment.

Email: seedlings@weyerhaeuser.com

Please contact us with any questions or concerns regarding ACH and thank you for your continued business.

Regards,

Western Regeneration Sales Support
seedlings@weyerhaeuser.com

Weyerhaeuser Lift Request

Please email a copy of your lift request to the contact for the nursery that your seedlings are being grown at. The information needed to complete this form, i.e., lot name, can be found on your Sales Order. If someone other then the person listed on the Sales Order will be coordinating the lift or pick up of seedlings please provide their contact information in the Alternative Contact section below. Storage facility preference will be taken into consideration but may need to be changed based on space and trucking. Options for storage in Washington include Olympia Cold Storage (O), Hiawatha Cold Storage (H), and Mima Nursery (M). Storage options in Oregon are Pan Am Cold Storage (P) and Auroa Nursery (A). You may only request storage at a nursery if those seedlings are being grown at that facility.

Sales Order #	Lot Name Ex: MR2223-123CUSTOMER	Quantiy	Overruns (>110%) Yes/No	Cooler or Freezer	Expected Pick Up Date	Prefered Storage Location

Comments:

Lift Coordinator

Rochester:	Tiffany Gardner	Tiffany.Gardner@weyerhaeuser.com	(360) 858-5714
Mima:	Neil Withers	Neil.Withers@weyerhaeuser.com	(360) 819-1492
Aurora:	Todd Fineman	Todd.Fineman@weyerhaeuser.com	(503) 776-6671
Jefferson:	Doug Arnold	Doug.Arnold@weyerhaeuser.com	(503) 743-7071
Turner:	Don Kloft	Don.Kloft@weyerhaeuser.com	(541) 327-2220

Alternative Contact

Name:

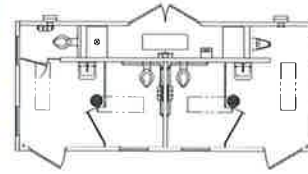
Phone:

Email:

DAKOTA — 11' x 26'

Item 2b1

Dakota with chase has two multiuser fully accessible flush restrooms. Standard features include simulated barnwood textured walls, simulated cedar shake textured roof, vitreous china fixtures, 4-gallon water heater, interior and exterior lights, off loaded, and set up at site.



800.696.5766
cxtinc.com

State of Oregon Contract #1542 Price Per Unit

Base Price	\$ 132,633.00	\$ 132,633.00
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Added Cost Options Click to Select

Optional Wall Texture- choose one		☐ Split Face Block (\$5,500)	☐ Custom Texture (\$7,000)	Reset Wall Texture	
Optional Roof Texture		☐ Ribbed Metal		\$ 5,500.00	0.00
Individual User Option				\$ 24,500.00	☐ 0.00
Stainless Steel Water Closet (each)	Qty: 3	\$ 1,750.00	☐		0.00
Stainless Steel Lavatory (each)	Qty: 2	\$ 1,500.00	☐		0.00
Stainless Steel Urinal (each)	Qty: 1	\$ 1,500.00	☐		0.00
Electric Hand Dryer (each)	Qty: 2	\$ 800.00	☐		0.00
Electronic Flush Valve (each)	Qty: 3	\$ 1,500.00	☐		0.00
Electronic Lavatory Faucet (each)	Qty: 2	\$ 1,500.00	☐		0.00
Electronic Urinal Valve (each)	Qty: 1	\$ 1,500.00	☐		0.00
Paper Towel Dispenser (each)	Qty: 2	\$ 350.00	☒		0.00 350
Toilet Seat Cover Dispenser (each)	Qty: 3	\$ 350.00	☐		0.00
Sanitary Napkin Disposal Receptacle (each)	Qty: 2	\$ 100.00	☒		0.00 100
Baby Changing Table (each)	Qty: 2	\$ 775.00	☐		0.00
Skylight in Restroom (each)	Qty: 2	\$ 1,600.00	☐		0.00
Marine Grade Skylight in Restroom (each)	Qty: 2	\$ 2,800.00	☐		0.00
Marine Package (excluding fiberglass doors and frames)		\$ 3,100.00	☐		0.00
Exterior Mounted ADA Drinking Fountain w/Cane Skirt (each)	Qty: 1	\$ 5,600.00	☐		0.00
2K Anti-Graffiti Coating		\$ 4,000.00	☐		0.00
Optional Door Closure (each)	Qty: 2	\$ 700.00	☐		0.00
Fiberglass Entry and Chase Doors and Frames (each)	Qty: 4	\$ 3,300.00	☐		0.00
Timed Electric Lock System (2 doors- does not include chase door) (each)	Qty: 2	\$ 1,350.00	☐		0.00
Exterior Frostproof Hose Bib with Box (each)	Qty: 1	\$ 1,200.00	☐		0.00

Total for Added Cost Options: \$ 0.00

Custom Options: \$

Estimated One-Way Transportation Costs to Site (quote): \$ 13,800.00

Estimated Tax: \$

Total Cost per Unit Placed at Job Site: \$ 146,433.00

Estimated monthly payment on 5 year lease \$2,943.30

146,883.00

This price quote is good for 60 days from date below, and is accurate and complete.

Todd Weger
Digitally signed by Todd Weger
Date: 2026.09.23 08:52:57 -07'00'

CXT Sales Representative

Date

I accept this quote. Please process this order.

Company Name

Signer's Name

Company Representative

Date



CXI[®] Incorporated manufactures restroom, shower and concession buildings in multiple designs, textures and colors. The roof and walls are fabricated with high strength precast concrete to meet all local building codes and textured to match local architectural details. All CXT buildings are designed to meet A.D.A. and to withstand heavy snow, high wind and category E seismic loads. All concrete construction also makes the buildings easy to maintain and withstand the rigors of vandalism. The buildings are prefabricated and delivered complete and ready-to-use, including plumbing and electrical where applicable. With thousands of satisfied customers nationwide, CXT is the leader in prefabricated concrete restrooms.

1. ORDERING ADDRESS(ES): CXT Incorporated, 606 N. Pines Road, Suite 202, Spokane Valley, WA 99206

2. ORDERING PROCEDURES: Fax 509-928-8270

3. PAYMENT ADDRESS(ES):

Remitting by check:

CXT, Inc., PO Box 676208, Dallas, TX 75267-6208

Remitting by ACH or wire transfer:

Beneficiary: CXT, Inc.

Beneficiary Bank: PNC Bank, Pittsburgh, PA

Account: 1077766885 ABA/Routing: 043000096

Email remittance details to AR@lbfooster.com

4. WARRANTY PROVISIONS: CXT provides a one (1) year warranty. The warranty is valid only when concrete is used within the specified loadings. Furthermore, said warranty includes only the related material necessary for the construction and fabrication of said concrete components. All other non-concrete components will carry a one (1) year warranty. CXT warrants that all goods sold pursuant hereto will, when delivered, conform to specifications set forth above. Goods shall be deemed accepted and meeting specifications unless notice identifying the nature of any non-conformity is provided to CXT in writing within the specified warranty. CXT, at its option, will repair or replace the goods or issue credit for the customer provided CXT is first given the opportunity to inspect such goods. It is specifically understood that CXT's obligation hereunder is for credit, repair or replacement only, F.O.B. CXT's manufacturing plants, and does not include shipping, handling, installation or other incidental or consequential costs unless otherwise agreed to in writing by CXT.

This warranty shall not apply to:

1. Any goods which have been repaired or altered without CXT's express written consent, in such a way as in the reasonable judgment of CXT, to adversely affect the stability or reliability thereof;

2. To any goods which have been subject to misuse, negligence, acts of God or accidents; or

3. To any goods which have not been installed to manufacturer's specifications and guidelines, improperly maintained, or used outside of the specifications for which such goods were designed.

5. TERMS AND CONDITIONS OF INSTALLATION (IF APPLICABLE): All prices subject to the "Conditions of Sale" listed on the CXT quotation form.

Customers are responsible for marking exact location building is to be set; providing clear and level site, free of overhead and/or underground obstructions; and providing site accessible to normal highway trucks and sufficient area for the crane to install and other equipment to perform the contract requirements. Site must allow for the crane to be within three feet of the building location and the truck to be within three feet of the crane. Customer shall provide notice in writing of low bridges, roadway width or grade, unimproved roads or any other possible obstacles to access. CXT reserves the right to charge the customer for additional costs incurred for

special equipment required to perform delivery and installation. Customers will negotiate installation on a project-by-project basis, which shall be priced as separate line items. For more information regarding installation and truck turning radius guidelines please see our website at cxtinc.com.

In the event delivery of the building/s ordered is/are not completed within 30 days of the agreed to schedule through no fault of CXT, an invoice for the full contract value (excluding shipping and installation costs) will be submitted for payment. Delivery and installation charges will be invoiced at the time of delivery and installation.

Should the delivery and installation costs increase due to changes in the delivery period, this increase will be added to the price originally quoted, and will be subject to the contract payment terms.

In the event that the delivery is delayed more than 90 days after the agreed to schedule and through no fault of CXT, then in addition to the remedies above, a storage fee of 1-1/2% of contract price per month or any part of any month will be charged.

****Customer is responsible for all local permits and fees.**

6. DELIVERY CHARGE: All prices F.O.B. origin prepaid and added to invoice. CXT operates three (3) manufacturing plants in the United States and will deliver from the closest location on our carriers.

7. PAYMENT TERMS: All orders are cash in advance. At CXT's discretion, credit may be given after approval of credit application. Payment to CXT by the purchaser of any approved credit amount is net 30 days after submission of invoice to purchaser. Interest at a rate equal to the lower of (i) the highest rate permitted by law; or (ii) 1.5% per month will be charged monthly on all unpaid invoices beginning with the 35th day (includes five (5) day grace period) from the date of the invoice. Under no circumstance can retention be taken. If CXT initiates legal proceeding to collect any unpaid amount, purchaser shall be liable for all of CXT's costs, expenses and attorneys' fees and costs of any appeal.

8. LIMITATION OF REMEDIES: In the event of any breach of any obligations hereunder; breach of any warranty regarding the goods, or any negligent act or omission of any party, the parties agree to submit all claims to binding arbitration. Any settlement reached shall include all reasonable costs including attorney fees. In no event shall CXT be subject to or liable for any incidental or consequential damages. Without limitation on the foregoing, in no event shall CXT be liable for damages in excess of the purchase price of the goods herein offered.

9. DELIVERY INFORMATION: All prices F.O.B. origin prepaid and added to invoice. CXT operates three (3) manufacturing plants in the United States and will deliver from the closest location on our carriers. Use the information below to determine the origin:

- F.O.B. 6701 E. Flamingo Avenue, Building 300, Nampa, ID 83687 applies to: AK, CA, HI, ID, MT, ND, NV, OR, SD, UT, WA, WY.

- F.O.B. 901 North Highway 77, Hillsboro, TX 76645 applies to AR, AZ, CO, IA, KS, LA, MN, MO, MS, NE, NM, OK, TX.

- F.O.B. 362 Waverly Road, Williamstown, WV 26183 applies to AL, CT, DE, FL, GA, IL, IN, KY, MA, MD, ME, MI, NC, NH, NJ, NY, OH, PA, PR, RI, SC, TN, VA, VT, WI, WV.

- Prices exclude all federal/state/local taxes. Tax will be charged where applicable if customer is unable to provide proof of exemption.



Josephine County Board of Commissioners

AGENDA REQUEST FOR BOARD OF COMMISSIONERS

Agenda Requests are due by NOON on Monday of the week scheduled for Administration Workshop
Requests received after that time will be placed on the Administration Workshop agenda for the following week

If sending documents electronically – please send to these two:

kaustin@josephinecounty.gov nurbach@josephinecounty.gov

REVISED July 2025

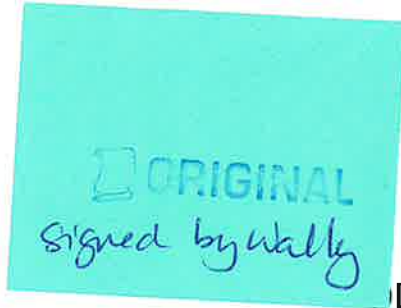
Date Submitted to BCC	09/24/2026
Administration Workshop Meeting Date (Thursday)	09/29/2026
WBS Meeting Date (Wednesday) Note: Second Wednesday of the month is evening session	

AGENDA TITLE: Amendment Number 1 ODOT Grant Agreement no. 35902

Department/Contact Person (Include Title and Ext. #)	Scott Chancey, Transit Program Supervisor
Presenter (Include Name and Title)	Scott Chancey, Transit Program Supervisor
Background information	ODOT agreement 35902 had a statement of work, as shown in Exhibit A, that was inaccurate. Therefore, the agreement needs to be amended before the proposed project can move forward. Agreement 35902 is state discretionary funds that were awarded to Josephine County for the purchase of 2 expansion vehicles to be used in transit operations. Vehicle purchases are categorized as "replacement" or "expansion" for federal and state purposes. The original agreement listed the vehicle purchase as "replacement" and would require the vehicles being replaced to be listed and then eventually removed from service. This amendment categorizes the vehicles as "expansion" meaning there is no associated vehicles being removed from the transit fleet. The grant itself is not being amended, in terms of award amount. The same funds of \$288,000, with a \$72,000 match will be provided. There are no general funds from Josephine County being used for this project. All funds are specifically awarded for the purchase of vehicles used in public transit service.
Action you are requesting from the Board	Signature on amendment
Reviewed by Finance Director (If yes, Finance's signature required)	NA – was included in FY 2026-2027 budget
Reviewed by Legal Counsel (If yes, Legal's signature required)	Yes
Reviewed by Information Technology (If yes, IT's signature required)	NA
Total Revenue, Cost, or Pass-Thru Funds to the County	\$360,000
Notes or Special Instructions to BCC Staff	Return signed agreement to Transit Dept.

Title of Document(s) Submitted <u>All exhibits must be clearly marked</u>	Number of original documents submitted	Are all signatures on the documents? Y/N or BCC only	Are additional signatures needed? Y/N	Will a state or federal agency be signing the document? Y/N	Will additional signatures be received electronically? Y/N
ODOT amendment 1	1	N	Y	Y	Y

agreement No 35902					
DOCUMENT DISTRIBUTION: Board staff is required to submit one fully executed document with original Board signatures for recording in the Board's Journal in the County Clerk's Office unless otherwise specified under Notes or Special Instructions to BCC Staff.					
• All Signatures: If all signatures are obtained, one fully executed original document will be filed in the Board's Journal in the County Clerk's Office and all other originals will be returned to the contact person. If only one original was submitted, an electronic copy will be returned to the contact person. • Additional Signatures Needed on Original Documents: Board staff will retain one document with original Board signatures and return the additional originals to the contact person to obtain the remaining signature(s). Upon department receipt of the fully executed document, one fully executed original document must be returned to Board staff for recording in the Board's Journal in the County Clerk's Office. • Additional Signatures Needed on Electronic Documents: Board staff will retain one document with original Board signatures and return an electronic copy to the contact person to obtain the remaining signature(s). Upon department receipt of the fully executed electronic document, one fully executed electronic document must be returned to Board staff for recording in the Board's Journal in the County Clerk's Office.					



AMENDMENT NUMBER 1
DOT GRANT AGREEMENT NO. 35902
Josephine County

The **State of Oregon**, acting by and through its Department of Transportation, hereinafter referred to as **State**, and **Josephine County**, hereinafter referred to as **Recipient**, entered into an Agreement on **September 10, 2025**. Said Agreement is to secure financial assistance to complete the activities described in Exhibit A.

It has now been determined by **State** and **Recipient** that the Agreement referenced above, although remaining in full force and effect, shall be amended to revise Exhibit A.

Exhibit A shall be deleted in its entirety and replaced with the attached Revised Exhibit A. All references to "Exhibit A" shall hereinafter be referred to as "Revised Exhibit A."

This Amendment may be executed in several counterparts (facsimile or otherwise) all of which when taken together shall constitute one agreement binding on all Parties, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of this Amendment so executed shall constitute an original.

THE PARTIES, by execution of this Agreement, hereby acknowledge that their signing representatives have read this Agreement, understand it, and agree to be bound by its terms and conditions.

SIGNATURE PAGE TO FOLLOW

Josephine County, by and through its

By _____

(Legally designated representative)

Name _____

(printed)

Date _____

By _____

Name _____

(printed)

Date _____

APPROVED AS TO LEGAL SUFFICIENCY

(If required in local process)

By *Am Hicks*

Recipient's Legal Counsel

Date 9/17/26

Recipient Contact:

Scott Chancey
201 River Heights Way
Grants Pass, OR 97527
1 (541) 474-5441
schancey@co.josephine.or.us

State Contact:

Jennifer Boardman
355 Capitol St NE, MS43
Salem, OR 97301
1 (541) 774-6371
Jennifer.Boardman@odot.oregon.gov

State of Oregon, by and through its
Department of Transportation

By _____

Andrea Durbin

Public Transportation Office Manager

Date _____

APPROVAL RECOMMENDED

By _____

Jennifer Boardman

Date _____

09/15/2026

APPROVED AS TO LEGAL SUFFICIENCY

(For funding over \$250,000)

By _____

Assistant Attorney General

Name _____

Nina R. Englander by email

(printed)

Date _____

11/12/2024

Signed Agreement Return Address: ODOTPTDReporting@odot.oregon.gov

Revised Exhibit A
Project Description and Budget

Project Description/Statement of Work

Project Title: STIF IC Josephine County 35902 <i>Purchase two expansion vehicles</i>				
	Total	Grant Amount	Local Match	Match Type(s)
P-25-0908-01 Item #1: Bus < 30ft				
	\$360,000.00	\$288,000.00	\$72,000.00	Local
Sub Total	\$360,000.00	\$288,000.00	\$72,000.00	
Grand Total	\$360,000.00	\$288,000.00	\$72,000.00	

1. BACKGROUND

In the 2017 legislative session, the Oregon Legislature passed House Bill 2017, the Statewide Transportation Improvement Fund (STIF). The bill designated nine percent of the total funds appropriated to be awarded to eligible Public Transportation Service Providers (PTSPs) based on a competitive grant process. This nine percent is divided into a five-percent share for STIF Discretionary projects and a four-percent share for STIF Intercommunity Discretionary projects.

The STIF Discretionary fund is a flexible fund source that aims to expand or improve public transportation services by supporting projects that create new service routes, adopt enhanced forms of technology and data collection, maintain transit fleets in a state of good repair, and advance the equity and sustainability of transportation in the state.

The STIF Intercommunity Discretionary fund is housed with FTA Section 5311(f) funds under the "Statewide Transit Network Program." The purpose of the Statewide Transit Network Program is to support projects that enhance Oregon's statewide fixed route transit network by investing in key transit hubs, closing gaps between two or more communities, improving access to and from transit for pedestrians and bicyclists, improving collaboration and coordination between agencies that results in functional benefits, or other activities that improve the function of the overall transit network and serve the interests of more than one transit agency.

This Agreement describes the duties and responsibilities of State and Recipient in the management and proper use of STIF funds or 5311(f) funds and the associated reporting requirements.

2. PROJECT DESCRIPTION

This Agreement provides funding for the following activities (collectively, the "Project"):

Recipient's Vehicle Expansion project to procurement and purchase of four vehicles that have reached their useful life:

Predominantly serves or provides access to and from rural communities (communities outside of urbanized areas with populations of 50,000 people or less), Serves an area outside of the Public Transportation Service Provider's geographic jurisdiction, Fills a significant gap in the Statewide Transit Network, i.e. the service connects two or more communities that are 20 or more miles from each other, Provides statewide benefits to multiple Public Transportation Service Providers outside of the area where the proposed project will be located.

Vehicles will be used in fixed route service in the urbanized area of Grants Pass as well as intercity commuter services across the communities of Cave Junction, Kirby, Selma, Wonder, Wilderville, Merlin, Hugo, Sunny Valley, Wolf Creek, with connections to Grants Pass, Rogue River, Gold Hill and Medford. The Grants Pass and Medford stops provide a connection to Amtrak in Klamath Falls as well as west along Hwy 199 to Smith River CA.

The project also provides for additional vehicles that can be used in fixed route transit within Grants Pass which allows for increased frequency of routes as well. The geographic boundaries are Josephine County with northern terminus at Wolf Creek and southern terminus at Cave Junction. There are connections with the cities of Rogue River and Gold Hill as well as the final connection to RVTD in Medford. Once in Medford transit users can go to/come from any of the other 7 cities RVTD services as well.

100% State Funded Projects

State-funded facility projects must follow state and local procurement and construction rules.

3. PROJECT DELIVERABLES, TASKS and SCHEDULE

Recipient will under this Agreement purchase of Two Class C transit vehicles as follows:

Useful life - 7 years or 200,000 miles; approximate length - 20-30 feet; estimated number of seats - 16-30; estimated number of ADA securement stations - 2-4; fuel type - gasoline.

Purchase includes all equipment and supplies necessary to put the vehicles into service.

All purchases and installations must be completed prior to the expiration date of this Agreement. Vehicles should be ordered no later than six months after the execution of the agreement and may not be considered for any type of extension if not ordered at least one year prior to the execution of the grant agreement. Every effort should be made to order the vehicles in a timely manner to ensure they are received prior to the expiration date of the agreement.

*Location where vehicle will be stored:
201 River Heights Way, Grants Pass, OR 97527*

Dates for each task

- Start Date: Sept 30, 2026*
- RFP/IFB Issue Date: October 1, 2026*
- Contract Award Date: November 1, 2026*
- Initial Delivery Date: September 15, 2027*
- Final Delivery Date: December 30, 2027*
- Contract Completion Date: June 30, 2029*

Recipient, in the performance of this Project, shall document steps taken to improve accessibility of public transportation for vulnerable populations and/or historically marginalized communities. Vulnerable populations include low-income individuals or households, veterans, Tribal communities or groups, individuals of age 65 and older, individuals with disabilities, and individuals with limited English proficiency. Information on this topic shall be provided to State through reporting.

State will retain title to the vehicles as primary security interest holder for as long as the vehicles remains in public transportation service. Recipient is required to report on all vehicles that are purchased with state or federal funding until disposition of the vehicle. Recipient must request permission from State to release title for disposal when planning to sell or transfer a vehicle and must notify State when actual disposal has been completed. Vehicles must exceed the minimum useful standard for age or mileage before State will release title. Recipient must request permission from State in advance to transfer or otherwise dispose of a vehicle prior to its meeting federal useful life standards. Recipient must request permission from State to release title for changes.

Recipient will create and maintain a vehicle maintenance plan that utilizes the original equipment manufacturer maintenance requirements for each vehicle and meets Federal Transit Administration transit asset management requirements in 49 CFR Part 625. Recipient will follow the plan to ensure each vehicle is maintained in a state of good repair. Recipient will provide State a copy of the maintenance plan upon request.

Recipient, if operating fixed route or deviated fixed route transit service, shall create and maintain current GTFS data describing the service. (This can be supported by State's GTFS contractor.) GTFS data should be updated in advance of system changes to allow trip planners to stay current.

Recipient, if operating demand response service, is encouraged to create and maintain GTFS-flex data for their service. (This can be supported by State's GTFS-flex contractor.)

Competitive purchases of systems that can count passengers [e.g., Automated Passenger Counters (APC), Automated Fare Collection (AFC) systems] should include an explicit preference for systems that support the GTFS-ride data standard. Purchases of real-time (RT) information systems for fixed route service must include support for GTFS-RT data and provide GTFS-RT data access to interested third parties].

STIF Intercommunity- supported service providers are strongly encouraged to serve key transit hubs and stops operated or used by for-profit/national transit providers where practical.

Add cost and schedule information for tasks. As applicable, include project phasing and major and minor project components with timing.

Modifications to projects funded with STIF Intercommunity Discretionary funds must continue to provide significant benefit to the statewide transit network or risk loss or reduction of project funding.

Vehicle purchased with the funding from the STIF Intercommunity fund will be used to help maintain routes that provide access to adjacent communities as well as connections to locations outside of the Josephine County boundary.

4. PROJECT ACCOUNTING and MATCHING FUNDING

Recipient retains authority over costs and allocations of STIF funds within the guidelines established by Oregon Revised Statutes (ORS) 184.751 through 184.758 and Oregon Administrative Rules (OAR) Chapter 732.

Eligible expenses that may be charged to this Agreement include grant administration, the cost of the procurement process, delivery charges and post-delivery inspections. Aftermarket equipment, graphics and other items directly associated with these vehicles and required to put the vehicles into service are eligible. Purchase of an extended warranty is an eligible expense; however, the eligible warranty shall not exceed the defined useful life of the vehicles. Licensing and other post-delivery expenses are not eligible for reimbursement.

5. REPORTING AND INVOICING REQUIREMENTS

Recipient will provide reporting information as prescribed by State on the vehicles purchased under this Agreement as long as the vehicles remains in public transportation service.

Recipient will submit a request for reimbursement in a format provided by State. Reimbursement requests must include:

The required agency cover letter (instructions found on PTD website), must be attached and include all of the following information:

Grant agreement number

Total cost of all items submitted for reimbursement on the vehicle (vendor purchase order plus any after-market additions to the vehicle), including the .5% vehicle use tax

Total passenger capacity/number of ADA stations/total passenger capacity with ADA stations deployed

Declaration of whether or not any rebates were given on price and if they are deducted from the reimbursement request

Date of acceptance of the vehicle (list if more than one vehicle)

Date vehicle was put into active transit service (list if more than one vehicle)

Source of matching funds

Declaration that vehicle license and title registration expenses are not included in the costs submitted for reimbursement

Declaration that a copy of each required document listed on the Pre-Award and Post-Delivery Vehicle Purchase Certification form is physically on file in the subrecipient's vehicle procurement file for each vehicle being purchased

Subrecipients should not attach invoices that are not directly related to the expenses that are requested on the reimbursement request document.

copies of all invoices associated with expenses identified for reimbursement. Also required are a pre-award and post-delivery certification form documenting compliance to Altoona bus testing, Federal Motor Vehicle Safety Standards, Buy America, and Disadvantaged Business Enterprise requirements.

Recipient is required to create, update and maintain an equipment maintenance plan for equipment valued at \$50,000 or more, including non-rolling stock vehicles and shop equipment.

Recipient shall service all vehicles according to the current maintenance plan.

Recipient shall maintain insurance coverage, or require sub-recipients to maintain insurance coverage, that meets or exceeds the standards in ORS 806.070

Recipient shall set useful life standards and retain the net proceeds from a sale or other disposition of Capital Asset to reinvest in the future STIF capital project or return net proceeds to the Agency. Per OAR 732-044-0050 (6) (a-c) and ensure that sub-recipients follow the same requirements.

Recipient shall confirm the eligibility of any Sub-Recipient prior to distributing STIF moneys and entering into an agreement with the Sub-Recipient. Recipient shall ensure that Sub-Recipients maintain eligibility throughout the project period. Recipient shall provide State with copies of agreement(s) made with Sub-Recipients within 30 days of execution of those agreements.

Per OAR 732-044-0040(1)(a), Recipient shall report on Project progress, outcomes achieved, and expenditures of discretionary STIF funds by itself and its Sub-Recipients. Failure to use STIF funds towards achievement of identified project deliverables may result in the cessation of funding to Recipient for the remainder of the Agreement period.

Project Progress Reporting

Recipient shall report Project progress quarterly through the Oregon Public Transit Information System (OPTIS) Agency Periodic Report (APR) and shall include a brief status update for each deliverable. Project reporting should align with project deliverables identified in this Agreement. State will use reporting information to assess Recipient's progress by comparing task-based expenditures to progress on deliverables.

Outcomes Achieved Reporting

Recipient shall report outcomes achieved through project performance. Continued funding under this Agreement is contingent upon reporting of outcomes achieved.

On a quarterly basis, in addition to continuing required elements in the APR, Recipient shall complete a short narrative describing outcomes achieved in performance of the Project. For the final quarter of the biennium, Recipient shall report on quarterly outcomes achieved as well as summarize outcomes achieved over the duration of the Agreement. Recipient shall provide additional information on outcomes achieved when and where directed to do so by State in reporting guidance.

Outcomes achieved are defined in State's program guidance and that guidance provides State's expectations surrounding all reporting requirements. For detailed instructions on quarterly, annual, and biennial reporting, refer to State's STIF Discretionary/STN Reporting Guidance document.

Expenditures

Expenditures of STIF Discretionary funds will be tracked in OPTIS. Recipient must submit reimbursement requests in OPTIS to receive reimbursement for Project expenditures.

FOR CAPITAL ASSET AGREEMENTS:

Recipient shall ensure Satisfactory Continuing Control of capital assets, including real property, purchased in whole or part under this Agreement while the capital assets are being used for public transportation purposes. Satisfactory Continuing Control means the legal assurance that a capital asset will remain available to be used for its originally authorized purpose throughout its useful life or until disposition.

An inventory of capital assets purchased in whole or in part with STIF funds will be created by State in the OPTIS asset register. The inventory will include a description of the capital asset, the date of purchase, the date put into public transportation service, the purchase price, the amount of STIF funds contributed to the purchase, the source of other funds, the authorized use per this agreement, the Recipient or Sub-Recipient using the capital asset (Owner/Operator), and the condition of the asset. Recipient shall report quarterly on all capital assets through the OPTIS APR, providing information relevant to purchased capital assets, including but not limited to, asset condition, and vehicle mileage.

Recipient shall request authorization from State for the sale, transfer, or other disposition of any Capital Asset purchased under this Agreement and shall report the amount of proceeds, if any, from the sale to State. Capital asset useful life standards shall be the same as those outlined by the Federal Transit Administration.

Recipient will provide reporting information as prescribed by State on the capital asset purchases under this Agreement as long as the capital asset remain in public transportation service.

Reimbursement requests for capital assets must include the following: a cover letter and copies of all invoices associated with expenses identified for reimbursement. Where a vehicle asset will be partially funded with federal funds, Recipient shall submit pre-award and post-delivery certification forms documenting compliance to Altoona bus testing, Federal Motor Vehicle Safety Standards, Buy America, and Disadvantaged Business enterprise requirements.

Reporting on Mitigation of Tax Impacts to Low-income Populations

Per OAR 732-040-0025(1), Qualified Entities receiving STIF funds shall submit a report on any actions taken by any PTSP located within the area of the Qualified Entity to mitigate the impact of the STIF tax on passengers who reside in low-income communities. This report must be submitted no later than 60 days after the end of each fiscal year in which the Qualified Entity receives STIF funds.

If Recipient is a Qualified Entity, Recipient shall submit this report as instructed separately from this Agreement and shall attach all responses submitted to Recipient by PTSPs receiving STIF discretionary funds that detail actions taken by those PTSPs.

If Recipient is not a Qualified Entity, Recipient shall complete and submit a form detailing any

mitigation actions taken by Recipient to the appropriate Qualified Entity no later than 30 days after the end of each Fiscal Year in which the PTSP receives STIF discretionary funds. This form will be provided to Recipient prior to the deadline for submission of the form and will include instructions for the proper completion and submittal of the form.

Recipient will provide reporting information as prescribed by State on structure(s) constructed and any purchased items to place the facility into service under this Agreement as long as they remain in use for public transportation service. All transit facilities constructed subject to this Agreement shall be included in Recipient's Transit Asset Management reporting to State. Procurement and construction files must be retained by Recipient for as long as the structure(s) remain in use, plus three years after disposal.

Recipient will request reimbursement for covered expenses incurred during each period as prescribed by State. Copies of invoices must be submitted for all vendor charges. In-house charges must be documented showing time specifically associated with the project. In addition, Recipient must submit a cover letter or summary of the total expenses for work performed with each reimbursement request. Site visits or photographs of construction progress are required in order to receive final reimbursement for project deliverables.

Vendor invoices must be attached and contain the following information

- Be legible*
- Match the amount requested for reimbursement*
- Include a description of the service (hours, rate, quantity of service)*
- Include the date(s) of the service*
- Include the agency providing the service*
- Subrecipients should not attach invoices that are not directly related to the expenses that are requested on the reimbursement request document.*

**BEFORE THE BOARD OF COUNTY COMMISSIONERS
For Josephine County, Oregon**

IN THE MATTER OF AN APPEAL OF A
DIRECTOR'S DECISION TO APPROVE A
PROCESSING FACILITY

APPELLANT: JOE & BONNIE CAMPANOLI

OWNER: MNG HOLDINGS LLC

APPLICANT: COLUMBIA WHOLESALE LLC

LEGAL: T 40, R 08, Sec 15-00, TL 314

FINDINGS OF FACT

& DECISION

SECTION 1. APPLICATION INFORMATION

- 1.1 The appellant is Joe & Bonnie Campanoli at 1040 Greenview Drive, Cave Junction, Oregon 97523.
- 1.2 The owner is MNG Holdings LLC at 81 NE Columbia Boulevard, Portland, Or 97211.
- 1.3 The applicant is Columbia Wholesale LLC at 2581 Dick George Road, Cave Junction, Or 97523.
- 1.4 An application for a Processing Facility was submitted by Solomon Fishman for Columbia Wholesale LLC on February 24, 2026, to allow for a processing facility.
- 1.5 The address for the property is 2581 Dick George Road, and it is described in the Assessor's records as Township 40, Range 08, Section. 13-00, Tax Lot 314. The zoning designation on the property is Exclusive Farm (EF). Site map is attached as **Exhibit A**.
- 1.6 Notice of the request in conformance with Section 19.32.010 of the *Josephine County Code (JCC)* was mailed on April 14, 2026. The Director received several comments in opposition within the comment period ending 5pm, May 6, 2026.
- 1.7 The Director reviewed the application and evidence regarding the processing facility against the criteria as set forth in Section 19.42.050.A., 19.64.035.K., 19.64.060.B., 19.64.095 and Chapter 19.99B and approved the request with conditions on June 9, 2026.

SECTION 2. APPEAL SUMMARY

- 2.1 Joe & Bonnie Campanoli, filed an Appeal of the Director's Decision to the Josephine County Board of County Commissioners (BCC) on June 22, 2026.

- 2.2 The BCC conducted a “de novo” public hearing on August 24, 2026. Commissioners present to hear the matter were Ron Smith, Colene Martin and Gary Richardson. There was no objection to the authority of the BCC to hear the matter.
- 2.3 Oral testimony of Terri Woodruff, Associate Planner, presented the planning staff report to the BCC.
- 2.4 Oral testimony of Solomon Fishman (applicant) for MNG Holdings LLC and Columbia Wholesale LLC presented arguments in favor of the Processing Facility.
- 2.5 Oral testimony of Bonnie Campanoli, (appellant) presented arguments in opposition to the Planning Director’s approval of the Processing Facility.
- 2.6 Oral testimony of James McGuire, Teresa Hoover, Alan Fabric, and India Jensen, presented arguments in opposition to the Processing Facility.
- 2.7 The Board asked Planning Staff and County Counsel numerous questions.
- 2.8 Further testimony of Solomon Fishman (applicant) reiterated the proposed activity would occur inside the existing containers and provided additional testimony in support of the Processing Facility.
- 2.9 Further testimony of Bonnie Campanoli asked the Board not to make a final decision until it had more time to consider the record and possible impacts of the processing operation.
- 2.10 The Board recessed at approximately 11:09 a.m. and reconvened shortly thereafter.
- 2.11 Chair Smith asked Planning Director, James Black to clarify the question before the Board. Mr. Black stated that the application was specifically for placement and operation of the processing facility and that the Board’s review should be measured against the applicable site plan, farm, and marijuana-business criteria.
- 2.12 Commissioners indicated that they wanted more time to review the proposed conditions and consider whether additional conditions should be imposed.
- 2.13 A motion was made to continue the hearing to Monday, August 31, 2026, at 10:00 a.m. and leave the evidentiary record open for additional evidence and testimony. The motion was seconded. Motion carried 3-0.
- 2.14 The hearing concluded the August 24 hearing session at 11:25 a.m.
- 2.15 Monday, August 31, 2026, Chair Smith reconvened the continued Land Use Hearing at 10:00 a.m. The matter continued from August 24, 2026, with the evidentiary record remaining open for additional evidence and testimony.

- 2.16 James Black, Josephine County Planning Director, clarified that the question before the Board was whether to approve or deny the farm crop processing facility under the review criteria contained in the staff report.
- 2.17 Commissioner Richardson asked Planning to address possible additional conditions that had been discussed at the August 24 hearing.
- 2.18 Planning explained that Josephine County Code requires at least 25 percent of the material processed at a farm crop processing facility to originate from the subject farm.
- 2.19 The Board clarified that the requirement concerns the source of the material being processed, not the percentage of the subject property crop that must be processed.
- 2.20 Planning stated that existing OLCC tracking information and the County annual compliance process could be used to verify compliance without creating a separate reporting system.
- 2.21 The Board also discussed a condition confirming that no water would be used in the manufacturing or processing operation.
- 2.22 Planning stated that the processing proposal is a dry process and that such a condition could be imposed. The discussion clarified that the condition would address water used for manufacturing/processing and would not prohibit water needed for an emergency or other lawful safety purposes.
- 2.23 Commissioner Richardson further asked whether commercial activity associated with the processing facility could be required to use Dick George Road rather than Greenview Road.
- 2.24 Planning stated that such an access condition was within the Board's authority.
- 2.25 Public Works deemed the Dick George Road access permits acceptable for the proposed processing facility.
- 2.26 Commissioner Martin requested an additional condition requiring carbon filtration for the processing operation.
- 2.27 Planning summarized the four additional conditions discussed by the Board: (1) at least 25 percent of the material processed at the facility must originate from Tax Lot 314; (2) no water shall be used for manufacturing/processing at the facility; (3) access for commercial activity associated with the processing facility shall be limited to Dick George Road and not Greenview Road; and (4) carbon filters shall be required for the processing facility.
- 2.28 A neighboring Greenview Road resident who had testified at the prior hearing asked whether Commissioners had visited the area and reiterated concerns about expansion of cultivation, water demand, and traffic.

- 2.29 Chair Smith stated he had not been able to make a site visit, instead reviewed the property and surrounding properties using Google Earth.
- 2.30 The owner/applicant representative responded that the use of hoop houses and potted plants was intended to improve management efficiency and was not expected to increase water use. He further stated the operation did not use Greenview Road for routine access and that Greenview Road is only used for emergency purposes.
- 2.31 The Board again distinguished the existing cultivation operation from the processing facility application before it.
- 2.32 Planning Director Black restated that the Board could approve or deny the farm processing facility and, if approved, could add the four conditions discussed during the hearing to the conditions already contained in Exhibit N.
- 2.33 Commissioner Richardson moved to affirm the Planning Department's approval of the farm crop processing facility subject to the conditions of approval in Exhibit N and the four additional conditions stated by Planning Director James Black during the August 31, 2026 hearing. The motion was seconded. Upon roll Richardson - Yes, Commissioner Martin - Yes, Commissioner Smith - Yes. Motion carried 3-0.
- 2.34 The Board directed Planning staff to prepare the written findings and final decision conditions.
- 2.35 Chair Smith closed the continued Land Use Hearing and adjourned the meeting at 10:29 a.m.

Minutes along with all other documentation and evidence received and reviewed as part of this action for the hearing held on both August 24, 2026, and August 31, 2026, are incorporated into these findings by reference.

SECTION 3. CRITERIA FOR DECISION

3.1 Section 19.42.050.A – Applicable Review Standards:

1. Development standards contained within this title and all other applicable master plans, rules, resolutions, ordinances, codes, technical manuals and policies of the County or the state or federal governments.

Board Finding: *The applicant has submitted a Site Plan Review application in compliance with the provision of the Josephine County Code (JCC) and all other applicable plans, rules, resolutions, ordinances, technical manuals and policies of the County, state, and federal governments. The property is zoned Exclusive Farm (EF). The EF zone allows the proposed use under Section 19.64.035.K – Farm Crop Processing Facility. Per Section 19.64.035, the proposed development is subject to Chapter 19.42 – Site Plan Review. The standards for review shall be those listed in JCC 19.42.050.A and the property development standards in Section 19.64.095 of the JCC. Final authorization for the activity is obtained by the issuance of a Development Permit under Chapter 19.41*

of the JCC. As conditioned below, the Director finds the application will comply with applicable development standards.

2. The Josephine County Transportation System Plan, including the official Street Map;

Board Finding: *The subject property is accessed from Dick George Road, a County-maintained public road included in the Josephine County Official Street Map. Any access to and from the Processing Facility is restricted to Dick George Road. Josephine County Public Works reviewed the proposal and provided no objections. Therefore, the Board finds that the proposal, including the proposed access to the facility, complies with the Josephine County Transportation System Plan.*

3. Standards for construction of required infrastructure and public health facilities; and

Board Finding: *The proposal does not require construction of new infrastructure or public health facilities. The proposed use remains subject to all applicable permits, inspections, and compliance requirements administered by the Josephine County Building Safety Division, OLCC, DEQ, and Josephine County Planning. As conditioned herein, the proposal can comply with applicable public health and infrastructure standards.*

4. Adequate access standards contained in JCC 19.11.030.

Board Finding: *Existing access to the property is provided by Dick George Road. Public Works will extend approval for Road Approach Permits 8770 and 8771 for this Site Plan Review Application. Therefore, the Board finds the proposal complies with JCC 19.11.030. As stated above, access to and from the Processing Facility is restricted to Dick George Road.*

Section 19.42.060 – Site Plan Map Requirements: *The site plan map is prepared to scale and contains all required drawings, mathematical data and property information as required by items A through V of this section.*

Board Finding: *The proposal is subject to submission of additional site plan information required under Section 19.42.060, JCC, including parking, circulation, loading areas, and lighting details.*

Section 19.64.035.K – Farm Crop Processing Requirements: *(1) The on-site farm operation provides at least one-quarter of the farm crops to be processed; and (2) the building established for the processing facility shall not exceed 10,000 square feet of floor area exclusive of the floor area designated for preparation, storage, or other farm use, or devote more than 10,000 square feet to the processing activities within another building supporting farm uses; and (3) the processing facility shall comply with all applicable siting standards but the standards shall not be applied in a manner that prohibits the siting of the processing facility; and (4) no land division shall be approved that separates a processing facility from the farm operation on which it is located.*

Board Finding: *(1) The applicant shall provide a statement confirming that the parcel will supply at least 25% of the marijuana processed at the facility. (2) The proposed processing facility will operate within three (3) 320 sq. ft. cargo containers, which is below the*

maximum permitted facility size of 10,000 sq. ft. (3) At the time of Development Permit application, the applicant shall provide both the statement confirming the 25% supply requirement and a plot plan showing the setbacks from all property lines to the proposed structures. (4) No land division is proposed.

Section 19.99B – Marijuana Business Standards:

Section 19.99B establishes operational and compliance standards applicable to marijuana businesses within Josephine County, including marijuana processing facilities. The proposed use is subject to these standards.

Board Finding: *The applicant proposes a marijuana processing facility within three (3) 8-foot by 40-foot cargo container located on property zoned Exclusive Farm (EF). The proposed use is subject to the standards of JCC Chapter 19.99B, which governs marijuana businesses within Josephine County, including compliance certification, operational standards, and ongoing regulatory oversight.*

Pursuant to JCC 19.99B.020, marijuana businesses may not lawfully operate without a valid Marijuana Compliance Certificate issued by the Josephine County Community Development Department, a valid state license issued by the OLCC or other appropriate state regulatory agency, and an approved Land Use Compatibility Statement (LUCS). The applicant must obtain and continuously maintain all required local and state approvals for the duration of the use.

In accordance with JCC 19.99B.021, the applicant is subject to all applicable certification, renewal, inspection, reporting, and notification requirements, including annual renewal of the Marijuana Compliance Certificate, payment of required fees, compliance with County inspection authority, and notification of any substantial changes submitted to state regulatory agencies.

The proposed use is further subject to the applicable operational standards of JCC 19.99B.050, including requirements related to odor control, lighting, security, fencing, and general site operations. Exterior lighting shall be fully shielded and directed downward to prevent light spill onto adjacent properties or into the night sky. Odor impacts shall be mitigated in accordance with County standards and applicable state regulations.

Pursuant to JCC 19.99B.050.E.2, marijuana business operations are subject to established seasonal hours of operation. With the exception of residents, guests, and employees engaged in security functions, all operational activities shall be limited to the following hours: (a) 7:00 a.m. to 7:00 p.m. from November 11 through September 19 annually; and (b) 5:00 a.m. to 9:00 p.m. from September 20 through November 10 annually.

Based on the submitted materials and applicable standards, the Board finds the proposed use can comply with the requirements of Chapter 19.99B, JCC.

Pursuant to JCC Section 19.99B.040, density standards allow only one (1) marijuana processing site per 12,500 County residents who are 21 years of age or older.

Board Finding: *The applicant submitted an application for a marijuana processing facility on November 11, 2025, prior to the adoption of the ordinance into the Josephine County Code which was February 11, 2026. Therefore, the density standards outlined in JCC Section 19.99B.040 do not apply to this application.*

Section 19.64.060.B – Waiver of Claim or Cause of Action: As a condition of approval, the landowner shall sign and record in the county deed records a document binding the landowner, and the landowner's successors in interest, prohibiting them from pursuing a claim for relief or cause of action alleging injury from farming or forest practices for which no action or claim is allowed under ORS 30.936 or 30.937.

Board Finding: *Prior to the issuance of a Development Permit, the owner of the property will be required to submit a copy of a signed, notarized, and recorded waiver of remonstrance as conditioned herein.*

Section 19.64.095.B – Property Development Standards:

a. Setbacks – Front (30') Rear (30') Side (30')

Board Finding: *The applicant shall provide a plot plan demonstrating that the proposed structures meet the required setback standards. The plot plan must clearly show the location of all proposed structures and the corresponding setback distances from property lines.*

b. Building size, accessory heights, setbacks, yard dimensions – See Chapter 19.72 JCC

Board Finding: *The proposed structures qualify as a farm-use structure within the EF zone and, as conditioned herein, will comply with the applicable dimensional and development standards of Chapter 19.72, JCC*

c. Access and transportation – See Chapter 19.81 JCC

Board Finding: *Existing access to the property is provided by Dick George Road, a County-maintained road. As stated above, Public Works has approved the Road Approach Permits for the proposed use and the existing access configuration. Therefore, the Planning Director finds that the proposal complies with the applicable access and transportation standards of Chapter 19.81, JCC.*

d. Erosion, sediment, storm drainage facilities – See Chapter 19.83 JCC.

Board Finding: *The property does not contain any granitic soil or steep slopes. This requirement has been met.*

e. Fences, walls and screens – See Chapter 19.73 JCC

Board Finding: *Any proposed fencing associated with the development is subject to the requirements of Chapter 19.73 and Section 19.99B.050.C, JCC.*

f. Stream setbacks – See Chapter 19.72 JCC.

Board Finding: *A portion of the property contains a Class 2 stream and a pond. The proposed processing facility is located outside of applicable riparian areas. Future development shall comply with all applicable riparian setback requirements.*

g. Parking – Chapter 19.75 JCC.

Board Finding: *The applicant shall adhere to the parking standards listed under Chapter 19.75 as outlined below.*

Chapter 19.75 – Parking

- a. Per JCC Section 19.75.030, parking must be within 400 feet of the development site.
- b. The proposed parking areas must meet the following requirements of JCC Section 19.75.040:
 - 1. Groups of three (3) or more parking spaces on a single lot, except those in conjunction with single-family dwellings, shall be served by a service road so that no backward movement or other maneuvering of a vehicle within a street, other than an alley, will be required. Service roads shall be designed and constructed to facilitate the flow of traffic, provide maximum safety in traffic ingress and egress, ensure the maximum safety of pedestrians and vehicular traffic on the site, but in no case shall two-way and one-way driveways be less than 20 feet and 12 feet wide respectively.
 - 2. Truck or recreational vehicle parking space shall be designed to adequately accommodate the proposed use; standard parking space shall be no less than 9 feet wide by 20 feet long; compact parking space shall be no less than 8 feet wide by 17 feet long.
- c. The proposed parking areas must also conform to the following requirements of JCC Section 19.75.060:
 - 1. If the parking area is not paved, then it shall be rocked or shaled;
 - 2. All parking areas, except those in conjunction with a single-family dwelling, shall be graded so as not to drain storm water over the public sidewalk or onto any abutting public or private property without the express permission of the property owner;
 - 3. All parking areas, except those required in conjunction with a single-family dwelling, shall provide a substantial bumper which will prevent cars from encroachment on abutting private or public property;

4. Any lights provided to illuminate any public or private parking area or vehicle sales area shall be shielded or so arranged as to reflect the light away from any abutting or adjacent residential zone.

Board Finding: *The proposal is subject to the off-street parking and circulation requirements of Chapter 19.75, JCC. As conditioned herein, the applicant shall provide a revised site plan demonstrating compliance with applicable parking, driveway circulation, and site layout standards.*

Chapter 19.74 – Signs

Board Finding: *The applicant has stated in the project narrative that only signage approved by the Oregon Liquor and Cannabis Commission will be used to identify the facility as a marijuana processor. No specific signage has been proposed as part of this application. Any future signage shall comply with the requirements of Chapter 19.74, JCC, and may require additional review, including authorization through a Development Permit from Planning and applicable permits from Building Safety*

Chapter 19.76 – Wildfire and Emergency Safety Standards: This Chapter is intended to reduce threats to human life and safety, to structures, and to wild lands, and to improve access in emergencies. Any land development that requires site plan review shall be required to develop wildfire mitigation plans that assure safety of the development. The standards contained in this Article are to assure that its purposes are met.

Board Finding: *The proposed development is subject to the Wildfire and Emergency Safety Standards of Chapter 19.76, JCC. As conditioned herein, the Board finds the proposal can comply with the applicable wildfire and emergency access standards.*

Chapter 19.77 – Lighting:

Outdoor (Section 19.77.010) - All exterior lighting, including light emitted from security systems, shall be shielded or use a hood and lens that cast light downward so as to ensure no light is cast onto adjacent properties nor upward in the night sky. If the lighting mechanism does not utilize a hood or lens, lighting fixtures shall be fully shielded in such a manner that all light emitted directly by the lamp or diffusing element, or indirectly by reflection or refraction, is projected below the horizontal plane through the lowest light-emitting part.

Board Finding: *As conditioned below, the applicant is subject to comply with the lighting requirements listed above.*

II. EVIDENCE AND FACTS

The Board of Commissioners considered the following evidence and testimony:

- A. Written staff report dated August 14, 2026, prepared by Terri Woodruff, Josephine County Planning Staff.

- B. Oral testimony of Terri Woodruff, Josephine County Planning Staff, who discussed the relevant aspects of the application noting the following: The written staff report, visual exhibits (PowerPoint), tentative plan, and the information submitted to address the relevant criteria.
- C. Oral testimony of Solomon Fishman applicant Columbia Wholesale LLC addressed the following: Written materials that addressed the applicable criteria and standards; oral testimony to the commission that addressed items in the staff report, and visual exhibits (PowerPoint).
- D. Oral testimony of Bonnie Campanoli, appellant discussed the reason for opposing the Cannabis Processing Facility.

III. FINDINGS OF FACT

The Josephine County Board of Commissioners ("Board"), having considered the application, staff report, exhibits, written and oral testimony, and the evidence presented at the public hearing, makes the following Findings of Fact in support of its decision:

- A. The Board considered all written and oral testimony regarding the requested approval of a Cannabis Processing Facility.
- B. Based on the testimony and information provided by the applicant, the Board finds that water will not be used for the manufacturing portion of the proposed Cannabis Processing Facility.
- C. Based on the testimony provided by the applicant, the Board finds that approximately one-quarter of the processing material used by the facility will be sourced from Tax Lot 314. The Board further finds, based on the evidence presented in the record, that the proposed use will not result in significant adverse impacts.
- D. Based on the evidence presented, the Board finds that the applicant has addressed wildfire-related concerns by complying with the applicable County site development standards.
- E. The Board finds that access to the proposed Cannabis Processing Facility will be provided directly from Dick George Road.
- F. Based on the application materials, staff review, written and oral testimony, and other evidence presented in the record, the Board finds that the proposed development satisfies the applicable standards and approval criteria of the Josephine County Development Code pertaining to this request.

IV. CONCLUSION

Based upon the above evidence, findings, and applicable criteria for decision, the Board concludes the applicant's request for approval of a Cannabis Processing Facility complies with the requirements of Josephine County and State law pertaining to such matters. The approval is based on a conclusion from the evidence and testimony submitted that the property is zoned for the intended use.

V. DECISION

Therefore, based on the staff report, evidence submitted into the record, and testimony of witnesses, the Board, upon a motion by Commissioner Richardson, seconded by Commissioner Martin and by a vote of **3-0** approve the request for the Cannabis Processing Facility subject to conditions. **Exhibit B**

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

Ron Smith, Chair

Colene Martin, Vice Chair

Gary Richardson, Commissioner

Chase Beguin, County Legal Counsel (Community Development Department)

Date: _____

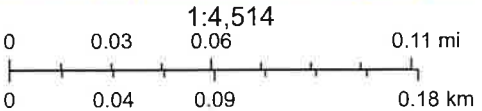
Attachments: **Exhibit A** – Tentative Plan Map
Exhibit B – Conditions of Approval

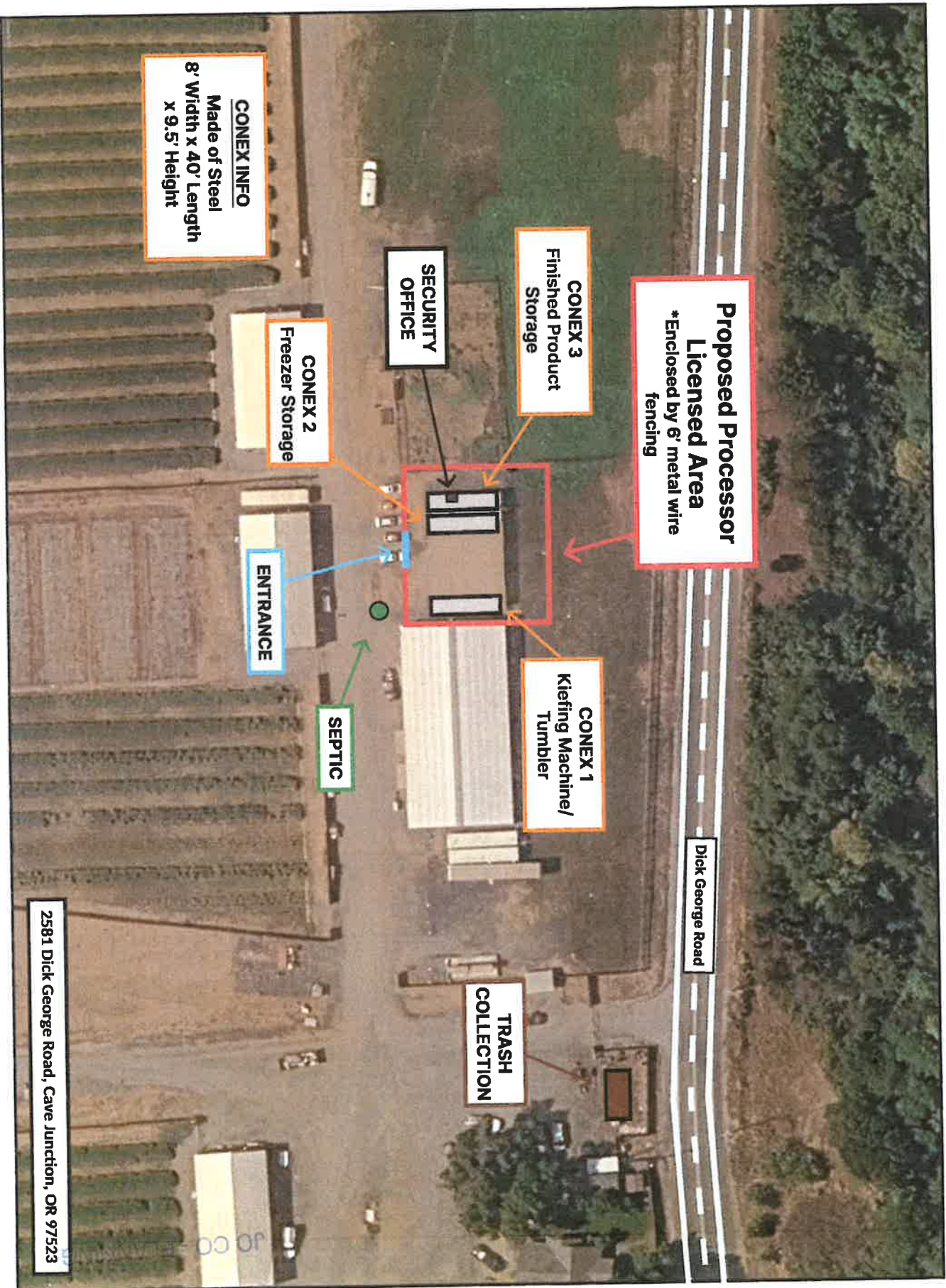
ArcGIS Web Map



9/14/2026, 11:22:26 AM

 Taxlots





**Proposed Processor
Licensed Area**
* Enclosed by 6' metal wire
fencing

CONEX 3
Finished Product
Storage

CONEX 1
Kiefting Machine/
Tumbler

CONEX 2
Freezer Storage

**SECURITY
OFFICE**

ENTRANCE

SEPTIC

**TRASH
COLLECTION**

Dick George Road

2581 Dick George Road, Cave Junction, OR 97523

CONEX INFO
Made of Steel
8' Width x 40' Length
x 9.5' Height

RECEIVED
FEB 24 2026



CONDITIONS OF APPROVAL

1. The applicant shall obtain a Development Permit (\$309) for final authorization to operate the processing facility (Section 19.41.020.B, JCC). One of the proposed cargo containers is included in the initial Development Permit for final authorization. The remaining two cargo containers shall each require a separate Development Permit, with an associated fee of \$309 per structure.
2. Prior to the issuance of the Development Permit, the applicant shall provide the following:
 - a) An updated site plan that includes all previously identified site features and improvements, together with all applicable items required under Section 19.42.060, JCC. The site plan shall include: (1) off-street parking, circulation, loading areas, and lighting details. Off-street parking areas shall be designed and laid out in conformance with the minimum standards set forth in Section 19.75.040, JCC, and all exterior lighting shall comply with the standards of Section 19.75.060(E), JCC; (2) the location and layout of all existing and proposed public and private utilities on and adjacent to the site, including septic systems; and (3) a depiction or description of adjoining structures and land uses, including the approximate distances between the subject parcel boundaries and adjacent structures or uses.
 - (b) A floor plan of the proposed structures to be used as the processing facility.
 - (c) Applicant shall submit a statement that the on-site farm operation will provide at least one quarter of the farm crop to be processed.
 - (d) A water quantity and quality report from a certified water laboratory that the water meets state water standards. (Section 19.050.A.1 & Section 19.84.070, JCC);
 - (e) A copy of the signed, notarized, and recorded "Waiver of Remonstrance regarding Farm Uses". This is a document binding the landowner, and the landowner's successors in interest, prohibiting them from pursuing a claim for relief or cause of action alleging injury from farming or forest practices for which no action or claim is allowed under ORS 30.936 or 30.937. (Sections 19.64.035 and 19.64.060.B, JCC)
 - (f) A statement from the fire service provider that the development meets fire and life safety standards and provides adequate directional signage and emergency vehicle access to the development. (Section 19.76.020.B, JCC)
3. The development shall conform to the approved site plans (Exhibit A), as modified by these conditions of approval.
4. The applicant, owner, and/or operator shall obtain and continuously maintain all required state and local permits, licenses, registrations, approvals, and certifications associated with the approved marijuana processing facility, including but not limited to a valid OLCC license, approved Land Use Compatibility Statement (LUCS), and Marijuana Compliance Certificate pursuant to JCC Chapter 19.99B. Failure to maintain such approvals may result in enforcement action or permit revocation pursuant to JCC 19.41.040 and Chapter 19.99B.
5. The applicant shall comply with all applicable Marijuana Compliance Certificate application, inspection, reporting, operational, and renewal requirements pursuant to JCC 19.99B.021,

including submission of all required documentation and fees within the timelines established by the Josephine County Code.

6. The applicant shall allow County inspections authorized under JCC 19.99B.021.D for the purpose of determining compliance with applicable state and local laws and regulations during regular business hours or as otherwise authorized by law.
7. The applicant shall notify Josephine County in writing of any substantial changes submitted to OLCC or other applicable state regulatory agencies, including but not limited to changes in ownership, operational scope, expansion, processing methodology, or location, pursuant to JCC 19.99B.021.G.
8. The applicant shall comply with all applicable operational standards of JCC 19.99B.050, including standards relating to odor control, lighting, security, fencing, and site operations. Any exterior lighting shall be shielded and directed downward away from adjacent properties and the night sky. Odor impacts associated with the processing facility shall be adequately mitigated in accordance with County and state regulations.
9. The marijuana processing facility shall comply with the hours of operation standards set forth in JCC 19.99B.050.E.2, including from 7:00 a.m. to 7:00 p.m., beginning November 11th and ending September 19th annually, and from 5:00 a.m. to 9:00 p.m., beginning September 20th and ending November 10th annually. With the exception of residents, guests, and employees serving in a security capacity, no operational activities shall occur outside of these established hours.
10. DEQ expects that all businesses understand their responsibility to the environment and that they are liable for any degradation that is caused to the environment (air, water, land) due to the activity, if proper precautions are not taken. (Section 19.42.050.A.1, JCC)
11. No surface or subsurface discharge of hazardous waste shall occur on this property. (Section 19.42.050.A.1, JCC)
12. Water usage shall comply with Oregon Department of Water Resources requirements. (Section 19.42.050.A.1, JCC)
13. The on-site farm operation shall provide at least one-quarter of the farm crops (marijuana) to be processed in the facility. (Section 19.64.035.K.1, JCC)
14. No land division shall be approved that separates a processing facility from the farm operation on which it is located. (Section 19.64.035.K.4, JCC)
15. All fences, walls, screening, and any vegetative screening associated with the marijuana business shall comply with Chapter 19.73 of the JCC and the applicable standards of JCC 19.99B.050.C. Any vegetative screening shall be maintained on-site and, when mature, shall adequately screen marijuana plants/crops as required by state law and County Code. Any shade cloth used for plant shading shall be temporary in nature, shall not exceed three consecutive months in duration, and shall be removed at the end of the growing season.
16. Any future proposed signage may require additional review and must meet the requirements of Chapter 19.74 of the JCC and shall be authorized through the issuance of a Development Permit from Planning.

17. All parking associated with the approved use shall occur on-site and shall comply with the Off-Street Parking standards of Chapter 19.75, JCC. Parking areas shall not encroach into the public right-of-way and shall be developed and maintained as depicted on the approved site plan. Standard parking spaces shall be no less than 9 feet wide by 20 feet long, compact spaces shall be no less than 8 feet wide by 17 feet long, and driveway widths shall be a minimum of 12 feet for one-way traffic and 20 feet for two-way traffic. (Sections 19.75.020, 19.75.040, and 19.75.060, JCC)
18. The development shall conform to JCC Chapter 19.76 – Wildfire and Emergency Safety Standards.
19. Address and direction signs shall be permanently posted and maintained at driveway entrances and at any subsequent driveway intersections (or divided driveways) so that they clearly and effectively direct approaching emergency traffic to structure locations. Numbers or letters used in the signs shall be at least three (3) inches high and address numbers shall consist of light reflective material. (Section 19.76.050, JCC)
20. Areas used for the storage of waste and/or recycling materials (trash receptacles) and buildings used to house these materials shall be set back 30 feet from all property lines. (Section 19.86.030.A.3, JCC)
21. This Director's decision is valid for two (2) years from the date of this letter, or the approval shall expire unless substantial development occurs as defined in Section 19.11.030.
22. Twenty-five percent of the processing material shall originate from Tax Lot 314 and be processed at the cannabis processing facility. (Section 19.64.035.K.1)
23. No water shall be used in the manufacturing processes conducted at the processing facility. (Per BCC)
24. Access to the processing facility shall be restricted to Dick George Road. No access to the processing facility shall be provided from Greenview Road. (Section 19.81.010)
25. A Carbon filtration system is required at the processing facility to mitigate and control odors. (Section 19.99B.050.A)



Anne G. Basker Auditorium
600 N.W. Sixth Street, Grants Pass, OR 97526

Use for County purposes shall have priority over the meeting requirements of community groups.
The County reserves the right to displace any scheduled use of the facility.
Board of County Commissioners Phone (541) 474-5221 Fax (541) 474-5105



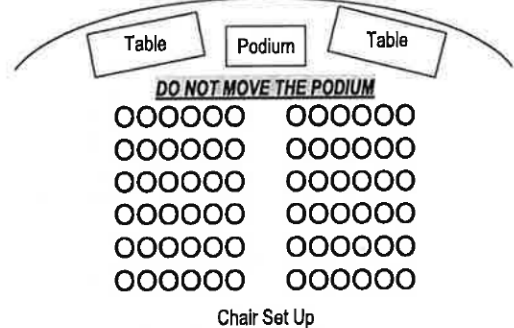
Name of Function or Organization: JoCo Republican Central Committee (JCRCC)	Work Phone: [REDACTED]	Date(s) Requested: Request Change from 11/12/26 to 11/19/26	
Authorized Representative: Chair Ron Lamb	Home/Cell Phone: [REDACTED]	E-mail Address: [REDACTED]	Hours of Use: 5pm-9pm
Street Address / City / State / Zip: [REDACTED]			
Purpose: JCRCC Biennial Organizational Meeting			

FEES: Check the box that applies to your group:

- ☐ Josephine County Departments (No Charge)
☒ Non-Profit, Political Parties and Government (\$75 Per Hr. / 2 Hr. Min)
☐ All others (\$150 Per Hr. / 2 Hr. Min)

(Two (2) hour Minimum)**Additional Fee(s) Apply**

- ☒ Audio System needed – 1 podium mic (\$25)
☒ Audio System needed – 1 or 2 wireless mic's (\$25)
☐ Visual System needed – computer/projectors for presentation (\$25)
☒ Wireless Internet needed (\$0)



Party is responsible for returning table and chair arrangement according to the diagram provided.
(Two sections-6 rows of 6 chairs each)

Event must be scheduled at least fourteen (14) days in advance. Application must be approved by the Board of Commissioners.
Use of the facility **is not permitted** between the hours of 9:00 p.m. and 7:00 a.m.
And 5:00 p.m. Friday through 8:00 a.m. Monday

Fire Capacity is 145 people. Available for use: 120 Stacking chairs, 12 tables (2—8' on casters/ 10—8 ft folding),
Stationary podium (**not to be moved**), and rolling wipe-off board. Phone number available: 541-474-5242 (Local calls only—must supply

I have read the Anne G. Basker Auditorium Use Policy on the reverse of this form and agree to abide by the rules and policies set forth in said Use Policy. I will be responsible for assuring that the building is locked and alarmed, the lights have been turned off, the facility is clean and the furniture and equipment are replaced in their original positions before I leave. I will return the key to the Commissioners' Office per the Use Policy. I understand that costs for all clean-up, damage, exceptional maintenance, or theft losses will be billed to the individual or group scheduling or checking out the key.

Chair Ron Lamb

September 22, 2026

Printed Name of Responsible Party:

Signature: [REDACTED]

Date:

—This section to be filled out by the Board of County Commissioners—

Approved - Board Initials

Date

- ☐ **DENIED** Reason for denial _____
☐ **APPROVAL CONFIRMATION** - Date Notified _____

Please return completed application to:

Josephine County Board of Commissioners, 500 N.W. Sixth Street, Grants Pass, OR 97526

FOR OFFICE USE ONLY:

PAID: \$ _____ DATE: _____ NOTIFIED IT: _____

Approved May 8, 2012
Revised February 2, 2016